

Stereo. H C J D A-38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH,
MULTAN
JUDICIAL DEPARTMENT

W.P. No.6543 of 2022

Irshad Bibi

Versus

Additional District Judge, Multan & others

J U D G M E N T

Date of hearing: 27.04.2026.
Petitioner by: Mr. Muhammad Irshad Khan, Advocate.
Respondents by: Respondent No.3 *ex parte*.

MUHAMMAD SAJID MEHMOOD SETHI, J.- Through this Constitutional Petition, the petitioner has assailed the judgment and decree dated 10.03.2022 passed by the learned Additional District Judge, Multan, whereby the judgment and decree dated 27.09.2021 passed by the learned Judge Family Court, Multan was modified to her prejudice by disallowing maintenance for the pre-litigation period, restricting maintenance to the period of *Iddat* at an enhanced rate of Rs.10,000/- per month, declining her claim of dower in the form of 2-½ acres of agricultural land (allowing only gold ring or its alternate value of Rs.25,000/-), and dismissing her claim for dowry articles in its entirety.

2. The relevant facts, in brief, are that the petitioner instituted a suit for dissolution of marriage, recovery of maintenance, dower, and dowry articles against respondent No.3. It was pleaded that the marriage was solemnized about two decades ago, with dower agreed as one gold ring and 2-½ acres of agricultural land worth Rs.1,25,00,000/-, and dowry articles valuing Rs.19,18,300/- were given at the time of marriage. The petitioner alleged maltreatment, eventual expulsion from the matrimonial home, and non-payment

of maintenance and dower, despite the respondent being a person of substantial means as a landlord and medical practitioner. The respondent contested the suit, denying the allegations and asserting that divorce had already taken place and that no effective marital relationship existed. Upon divergent pleadings, issues were framed and evidence was recorded. The learned Family Court partly decreed the suit vide judgment dated 27.09.2021, granting maintenance, dower (including 2-½ acres of land), and alternate value of dowry articles. Both parties preferred appeals. The learned Appellate Court vide judgment dated 10.03.2022 modified the decree, restricting maintenance to *Iddat* only, declining dower in land, and dismissing dowry claim entirely, hence the present petition.

3. Learned counsel for the petitioner contends that the dower, including 2-½ acres of agricultural land, was expressly recorded in the *Nikahnama* but was never transferred or satisfied in accordance with law. It is further contended that dowry articles were duly given at the time of marriage and unlawfully retained by the respondent. He submits that both Courts below misread and misappreciated the evidence, resulting in unlawful curtailment of the petitioner's lawful rights. He further asserts that the respondent's alleged second marriage and conduct demonstrate continued neglect of marital obligations.

4. The principal controversy revolves around three facets, namely: (i) entitlement of the petitioner to recover dower, particularly the 2-½ acres of agricultural land; (ii) entitlement to maintenance allowance beyond the period of *Iddat*; and (iii) entitlement to dowry articles or their alternate value.

Insofar as the question of dower is concerned, the admitted position emerging from the record is that the *Nikahnama*, which constitutes the foundational document of the marital contract, records the dower as comprising a gold ring and 2-½ acres of agricultural land. The learned Family Court, while placing reliance

upon this admitted document, rightly concluded that the respondent had failed to establish payment or transfer of the said landed property through any legally cognizable mode. The burden to prove payment or satisfaction of dower squarely rested upon the respondent, which he did not discharge by producing any mutation, registered conveyance, or other documentary evidence indicative of transfer of ownership.

5. The learned Appellate Court, however, reversed the said finding primarily on the basis of an entry in Column No.16 of the *Nikahnama*, interpreting the same as proof of payment. With utmost respect, this approach is legally untenable. A mere recital in the *Nikahnama*, particularly one relating to transfer of immovable property, cannot be equated with or substituted for the mandatory legal requirements governing such transfer. It is well-settled that transfer of immovable property of this nature must be evidenced through duly executed legal instruments and supported by corresponding entries in the revenue record. In the absence of such material, no presumption of payment or transfer could lawfully be drawn. The learned Appellate Court, therefore, fell in patent error by treating a bare recital as conclusive proof, thereby misreading the document and disregarding settled principles governing appreciation of evidence.

6. Turning to the question of maintenance, the learned Appellate Court curtailed the petitioner's entitlement to the period of *Iddat* alone, primarily on the premise that divorce had taken place in the year 2002. This conclusion is fraught with internal inconsistency and legal infirmity. The learned Family Court, in clear terms, had disbelieved the alleged divorce on account of non-compliance with mandatory statutory requirements, particularly the absence of proof regarding service of notice upon the concerned Union Council and its due confirmation. The Appellate Court, instead of addressing this foundational legal deficiency, proceeded to rely upon collateral circumstances, such as dismissal of the suit

for dissolution as having become infructuous and the alleged subsequent marriage of the petitioner.

Such reasoning cannot be sustained in law. The validity of divorce under the relevant legal framework is contingent upon strict compliance with the prescribed procedural requirements, including proper communication and statutory notice. Mere production of an unverified divorce deed does not, by itself, operate to dissolve the marital tie. The burden to establish a valid and effective divorce squarely rested upon the respondent, which burden remained undischarged. The Appellate Court, by relying upon conjectural inferences rather than strict proof of a legally effective divorce, misdirected itself in law. Consequently, the restriction of maintenance to the period of *Iddat* alone is not supported by the record.

7. Furthermore, even otherwise, the quantum of maintenance fixed by the learned Family Court at Rs. 2,000/- per month was manifestly inadequate, keeping in view the admitted financial status of the respondent as a landlord and medical practitioner. The Appellate Court, while enhancing the same to Rs. 10,000/- for the limited period of *Iddat*, failed to adjudicate upon the core question of entitlement beyond that period, thereby rendering its findings incomplete and legally unsustainable.

8. As regards dowry articles, the learned Family Court adopted a pragmatic and balanced approach. It acknowledged the absence of formal receipts but took into account the customary practices prevalent in society, where dowry transactions are seldom documented in a formal manner. On the basis of oral evidence and the list produced, the trial Court awarded a modest alternate value after accounting for exaggeration and depreciation. This approach was in consonance with the realities of social practice and the settled principles governing appreciation of evidence in family litigation. The learned Appellate Court, however, discarded the entire claim on the ground that the list had not been prepared at the

time of marriage and lacked signatures of the recipient. This reasoning, though apparently technical, overlooks the settled principle that family disputes are to be adjudicated with a measure of pragmatism rather than by importing rigid evidentiary standards applicable to commercial transactions. Reference is made to Najeebullah vs. Family Judge-II, Quetta and others (PLD 2026 Balochistan 6), Ahmad Bakhsh vs. Judge Family Court, Alipur and another (1997 MLD 1438). The oral testimony of the petitioner, duly supported by her witness, could not have been discarded in toto, particularly when cohabitation between the parties was not convincingly rebutted. The Appellate Court thus fell into error by applying an unduly strict standard of proof, resulting in misreading and non-reading of material evidence.

9. An overall assessment of the impugned judgment reflects that the learned Appellate Court has placed selective reliance upon certain portions of the evidence while omitting to consider other material aspects of the record, thereby arriving at conclusions which are not duly supported by the evidence as a whole. The findings recorded suffer from misreading as well as non-reading of evidence, are internally inconsistent and demonstrate erroneous application of settled legal principles.

10. It is necessary to delineate the scope of interference by this Court in exercise of its constitutional jurisdiction. Although this jurisdiction is not intended to substitute the findings of fact recorded by the Courts below, it is well settled that where such findings are the result of misreading or non-reading of evidence, suffer from patent illegality, or are based on conjectures and surmises, this Court would be justified in interfering to prevent miscarriage of justice. The case in hand, upon careful scrutiny, falls within these recognized exceptions. Reliance is placed upon Muhammad Ashraf Butt and others Vs Muhammad Asif Bhatti and others (PLD 2011 Supreme Court 905), Muhammad Haziq Ali Khan and others vs. IXth Additional District Judge, Hyderabad and

others (2023 CLC 1817), Hammad Ali Khan and others v. Mst. Sadia Akbar and others (2024 MLD 1445) and Irfan Arshad vs. Mst. Zainab Noor and others (2025 MLD 401).

11. For the foregoing reasons, instant petition is **allowed** in the manner that the impugned judgment and decree dated 10.03.2022, passed by the learned Appellate Court, are hereby set aside being without lawful authority and of no legal effect. The judgment and decree dated 27.09.2021 passed by the learned Family Court are restored, subject to modification that the petitioner shall be entitled to maintenance at the rate of Rs.10,000/- per month. No order as to costs.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge

A.H.S.